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CASES ADJUDGED
IN THE
SUPREME COURT OF THE UNITED STATES
AT
OCTOBER TERM, 2019

Page Proof Pending Publication

Syllabus

ESPINOZA ET AL. *v.* MONTANA DEPARTMENT OF
REVENUE ET AL.

CERTIORARI TO THE SUPREME COURT OF MONTANA

No. 18–1195. Argued January 22, 2020—Decided June 30, 2020

The Montana Legislature established a program that grants tax credits to those who donate to organizations that award scholarships for private school tuition. To reconcile the program with a provision of the Montana Constitution that bars government aid to any school “controlled in whole or in part by any church, sect, or denomination,” Art. X, §6(1), the Montana Department of Revenue promulgated “Rule 1,” which prohibited families from using the scholarships at religious schools. Three mothers who were blocked by Rule 1 from using scholarship funds for their children’s tuition at Stillwater Christian School sued the Department in state court, alleging that the Rule discriminated on the basis of their religious views and the religious nature of the school they had chosen. The trial court enjoined Rule 1. Reversing, the Montana Supreme Court held that the program, unmodified by Rule 1, aided religious schools in violation of the Montana Constitution’s no-aid provision. The Court further held that the violation required invalidating the entire program.

Held: The application of the no-aid provision discriminated against religious schools and the families whose children attend or hope to attend them in violation of the Free Exercise Clause of the Federal Constitution. Pp. 473–489.

(a) The Free Exercise Clause “protects religious observers against unequal treatment” and against “laws that impose special disabilities on the basis of religious status.” *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U.S. 449, 458, 461. In *Trinity Lutheran*, this Court held that disqualifying otherwise eligible recipients from a public benefit “solely because of their religious character” imposes “a penalty on the free exercise of religion that triggers the most exacting scrutiny.” *Id.*, at 462. Here, the application of Montana’s no-aid provision excludes religious schools from public benefits solely because of religious status. As a result, strict scrutiny applies. Pp. 473–479.

(b) Contrary to the Department’s contention, this case is not governed by *Locke v. Davey*, 540 U.S. 712. The plaintiff in *Locke* was denied a scholarship “because of what he proposed to do—use the funds to prepare for the ministry,” an essentially religious endeavor. *Trinity Lutheran*, 582 U.S., at 464. By contrast, Montana’s no-aid provision

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does not zero in on any essentially religious course of instruction but rather bars aid to a religious school “simply because of what it is”—a religious school. *Ibid.* *Locke* also invoked a “historic and substantial” state interest in not funding the training of clergy, 540 U. S., at 725, but no comparable tradition supports Montana’s decision to disqualify religious schools from government aid. Pp. 479–483.

(c) The proposed alternative approach involving a flexible case-by-case analysis is inconsistent with *Trinity Lutheran*. The protections of the Free Exercise Clause do not depend on a varying case-by-case analysis regarding whether discrimination against religious adherents would serve ill-defined interests. Pp. 483–484.

(d) To satisfy strict scrutiny, government action “must advance ‘interests of the highest order’ and must be narrowly tailored in pursuit of those interests.” *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520, 546. Montana’s interest in creating greater separation of church and state than the Federal Constitution requires “cannot qualify as compelling” in the face of the infringement of free exercise here. *Trinity Lutheran*, 582 U. S., at 466. The Department’s argument that the no-aid provision actually promotes religious freedom is unavailing because an infringement of First Amendment rights cannot be justified by a State’s alternative view that the infringement advances religious liberty. The Department’s argument is especially unconvincing because the infringement here broadly burdens not only religious schools but also the families whose children attend them. The Department suggests that the no-aid provision safeguards public education by ensuring that government support is not diverted to private schools, but that interest does not justify a no-aid provision that requires only religious private schools to bear its weight. Pp. 484–487.

(e) Because the Free Exercise Clause barred the application of the no-aid provision here, the Montana Supreme Court had no authority to invalidate the program on the basis of that provision. The Department argues that the invalidation of the entire program prevented a free exercise violation, but the Department overlooks the Montana Supreme Court’s threshold error of federal law. Had the Montana Supreme Court recognized that the application of the no-aid provision was barred by the Free Exercise Clause, the Court would have had no basis for invalidating the program. The Court was obligated to disregard the no-aid provision and decide this case consistent with the Federal Constitution. Pp. 487–489.

393 Mont. 446, 435 P. 3d 603, reversed and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concur-

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ring opinion, in which GORSUCH, J., joined, *post*, p. 489. ALITO, J., *post*, p. 497, and GORSUCH, J., *post*, p. 508, filed concurring opinions. GINSBURG, J., filed a dissenting opinion, in which KAGAN, J., joined, *post*, p. 515. BREYER, J., filed a dissenting opinion, in which KAGAN, J., joined as to Part I, *post*, p. 520. SOTOMAYOR, J., filed a dissenting opinion, *post*, p. 538.

Richard D. Komer argued the cause for petitioners. With him on the briefs were *Erica J. Smith*, *William W. Mercer*, *Michael Bindas*, and *Timothy D. Keller*.

Deputy Solicitor General Wall argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Dreiband*, *Vivek Suri*, *Thomas E. Chandler*, and *Eric W. Treene*.

Adam G. Unikowsky argued the cause for respondents. With him on the brief were *James Dawson*, *Daniel J. Whyte*, and *Anthony Johnstone*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Oklahoma et al. by *Mike Hunter*, Attorney General of Oklahoma, *Mithun Mansinghani*, Solicitor General, and *Zach West* and *Bryan Cleveland*, Assistant Solicitors General, by *Christopher M. Carr*, Attorney General of Georgia, *Andrew A. Pinson*, Solicitor General, and *Kurtis G. Anderson*, Assistant Attorney General, by *Mark Brnovich*, Attorney General of Arizona, *O. H. Skinner*, Solicitor General, and *Andrew G. Pappas*, Deputy Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Leslie Rutledge* of Arkansas, *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Eric Schmitt* of Missouri, *Doug Peterson* of Nebraska, *Dave Yost* of Ohio, *Jason R. Ravensborg* of South Dakota, *Herbert H. Slatery III* of Tennessee, *Ken Paxton* of Texas, *Sean D. Reyes* of Utah, and *Patrick Morrisey* of West Virginia; for the Alliance for Choice in Education by *Ian Speir* and *L. Martin Nussbaum*; for the American Center for Law and Justice by *Jay Alan Sekulow*, *Stuart J. Roth*, *Colby M. May*, and *Walter M. Weber*; for Americans for Prosperity et al. by *Cynthia F. Crawford*; for the Arizona Christian School Tuition Organization et al. by *Allyson N. Ho*, *Bradley G. Hubbard*, *Kristen K. Waggoner*, *David A. Cortman*, *John J. Bursch*, *Brett B. Harvey*, *Rory T. Gray*, and *Christopher P. Schandev*; for the Becket Fund for Religious Liberty by *Diana M. Verm*, *Eric S. Baxter*, and *Eric S. Rassbach*; for the Billy Graham Evangelistic Association et al. by *Frederick W. Claybrook, Jr.*, *James A. Davids*, and *David*

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CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

The Montana Legislature established a program to provide tuition assistance to parents who send their children to

A. Bruce; for the Cato Institute by *Ilya Shapiro*; for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for the Center for Education Reform et al. by *Paul D. Clement*, *George W. Hicks, Jr.*, and *Erin M. Hawley*; for the Christian Legal Society et al. by *Kimberlee Wood Colby*, *Reed N. Smith*, *Douglas Laycock*, and *Thomas C. Berg*; for EdChoice et al. by *Leslie Davis Hiner*, *Russell Menyhart*, and *Manuel S. Klausner*; for Forge Youth Mentoring by *Joshua D. Davey* and *Kelly J. Shackelford*; for the Foundation for Moral Law by *John A. Eidsmoe*; for the Georgia Goal Scholarship Program, Inc., by *James P. Kelly III* and *Harry W. MacDougald*; for the Independence Institute by *David B. Kopel*; for the Jewish Coalition for Religious Liberty by *Parker Douglas* and *Howard Slugh*; for the Justice and Freedom Fund et al. by *James L. Hirsen*, *Deborah J. Dewart*, and *B. Tyler Brooks*; for the Liberty Justice Center et al. by *Brian K. Kelsey*, *Jeffrey M. Schwab*, and *Daniel R. Suhr*; for the Mackinac Center for Public Policy by *Patrick J. Wright*; for Montana Catholic School Parents et al. by *Andrea Picciotti-Bayer*; for the Montana Family Foundation by *Anita Y. Milanovich*; for the Opportunity Scholarship Fund by *Fred A. Leibrock*; for the Pioneer Institute, Inc., by *Dwight G. Duncan* and *Michael C. Gilleran*; for The Rutherford Institute by *Jason P. Gosselin* and *John W. Whitehead*; for Jerry Armstrong et al. by *Ethan W. Blevins*, *Wencong Fa*, and *Joshua P. Thompson*; for Rusty Bowers et al. by *John J. Park, Jr.*; for Sen. Steve Daines et al. by *Sarah M. Harris*; for the Hon. Scott Walker by *Richard M. Esenberg*; and for 131 Current and Former State Legislators by *Steven W. Fitschen*.

Briefs of *amici curiae* urging affirmance were filed for the State of Colorado et al. by *Philip J. Weiser*, Attorney General of Colorado, *Eric R. Olson*, Solicitor General, *Christopher Johnson*, Assistant Attorney General, and *Grant T. Sullivan*, Assistant Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Xavier Becerra* of California, *Clare E. Connors* of Hawaii, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Letitia James* of New York, *Ellen F. Rosenblum* of Oregon, and *Robert F. Ferguson* of Washington; for the State of Maine by *Aaron M. Frey*, Attorney General of Maine, *Susan P. Herman*, Deputy Attorney General, and *Sarah A. Forster* and *Christopher C. Taub*, Assistant Attorneys General; for the American Federation of Teachers et al. by *Kevin K. Russell*, *Erica Oleszczuk Evans*, *John M. West*, *Ramya Ravindran*, *Alice O'Brien*, *Kristen Hollar*,

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private schools. The program grants a tax credit to anyone who donates to certain organizations that in turn award scholarships to selected students attending such schools. When petitioners sought to use the scholarships at a religious school, the Montana Supreme Court struck down the program. The Court relied on the “no-aid” provision of the State Constitution, which prohibits any aid to a school controlled by a “church, sect, or denomination.” The question presented is whether the Free Exercise Clause of the United States Constitution barred that application of the no-aid provision.

I

A

In 2015, the Montana Legislature sought “to provide parental and student choice in education” by enacting a scholarship program for students attending private schools. 2015 Mont. Laws p. 2168, § 7. The program grants a tax credit of up to \$150 to any taxpayer who donates to a participating “student scholarship organization.” Mont. Code Ann. §§ 15–

Rhonda Weingarten, and David J. Strom; for the Baptist Joint Committee for Religious Liberty et al. by Steven K. Green, K. Hollyn Hollman, and Jennifer L. Hawks; for the Freedom From Religion Foundation et al. by Andrew Seidel and Patrick Elliott; for the Montana Association of Rabbis by Charles A. Rothfeld, Andrew J. Pincus, Michael B. Kimberly, Paul W. Hughes, and Eugene R. Fidell; for Montana Constitutional Convention Delegates by Hyland Hunt and Ruthanne M. Deutsch; for the Montana-Northern Wyoming Conference, United Church of Christ, by Tillman J. Breckenridge and Patricia E. Roberts; for the National Disability Rights Network et al. by Gregory M. Lipper, Ronald M. Hager, Shira Wakschlag, and Selene Almazan-Altobelli; for the National School Boards Association et al. by Francisco M. Negrón, Jr., and Sonja H. Trainor; for Public Funds Public Schools by Tamerlin J. Godley and Jessica Reich Baril; for Religion Law Scholars by Kirti Datla; for Religious and Civil-Rights Organizations by Richard B. Katskee, Alex J. Luchenitser, Daniel Mach, Heather L. Weaver, David D. Cole, Steven M. Freeman, and Elliot M. Minberg; and for the Tennessee Education Association by Richard L. Colbert.

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30–3103(1), –3111(1) (2019). The scholarship organizations then use the donations to award scholarships to children for tuition at a private school. §§ 15–30–3102(7)(a), –3103(1)(c).¹

So far only one scholarship organization, Big Sky Scholarships, has participated in the program. Big Sky focuses on providing scholarships to families who face financial hardship or have children with disabilities. Scholarship organizations like Big Sky must, among other requirements, maintain an application process for awarding the scholarships; use at least 90% of all donations on scholarship awards; and comply with state reporting and monitoring requirements. §§ 15–30–3103(1), –3105(1), –3113(1).

A family whose child is awarded a scholarship under the program may use it at any “qualified education provider”—that is, any private school that meets certain accreditation, testing, and safety requirements. See § 15–30–3102(7). Virtually every private school in Montana qualifies. Upon receiving a scholarship, the family designates its school of choice, and the scholarship organization sends the scholarship funds directly to the school. § 15–30–3104(1). Neither the scholarship organization nor its donors can restrict awards to particular types of schools. See §§ 15–30–3103(1)(b), –3111(1).

The Montana Legislature allotted \$3 million annually to fund the tax credits, beginning in 2016. § 15–30–3111(5)(a). If the annual allotment is exhausted, it increases by 10% the following year. *Ibid.* The program is slated to expire in 2023. 2015 Mont. Laws p. 2186, § 33.

The Montana Legislature also directed that the program be administered in accordance with Article X, section 6, of the Montana Constitution, which contains a “no-aid” provision barring government aid to sectarian schools. See

¹The Legislature provided the same tax credit to taxpayers who donate to public schools for the purpose of supporting innovative educational programs or curing technology deficiencies at such schools. See Mont. Code Ann. § 15–30–3110 (2019).

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Mont. Code Ann. § 15–30–3101. In full, that provision states:

“Aid prohibited to sectarian schools. . . . The legislature, counties, cities, towns, school districts, and public corporations shall not make any direct or indirect appropriation or payment from any public fund or monies, or any grant of lands or other property for any sectarian purpose or to aid any church, school, academy, seminary, college, university, or other literary or scientific institution, controlled in whole or in part by any church, sect, or denomination.” Mont. Const., Art. X, § 6(1).

Shortly after the scholarship program was created, the Montana Department of Revenue promulgated “Rule 1,” over the objection of the Montana Attorney General. That administrative rule prohibited families from using scholarships at religious schools. Mont. Admin. Rule § 42.4.802(1)(a) (2015). It did so by changing the definition of “qualified education provider” to exclude any school “owned or controlled in whole or in part by any church, religious sect, or denomination.” *Ibid.* The Department explained that the Rule was needed to reconcile the scholarship program with the no-aid provision of the Montana Constitution.

The Montana Attorney General disagreed. In a letter to the Department, he advised that the Montana Constitution did not require excluding religious schools from the program, and if it did, it would “very likely” violate the United States Constitution by discriminating against the schools and their students. See Complaint in No. DV–15–1152A (Dist. Ct. Flathead Cty.), Exh. 3, pp. 2, 5–6. The Attorney General is not representing the Department in this case.

B

This suit was brought by three mothers whose children attend Stillwater Christian School in northwestern Montana. Stillwater is a private Christian school that meets the statu-

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tory criteria for “qualified education providers.” It serves students in prekindergarten through 12th grade, and petitioners chose the school in large part because it “teaches the same Christian values that [they] teach at home.” App. to Pet. for Cert. 152; see *id.*, at 138, 167. The child of one petitioner has already received scholarships from Big Sky, and the other petitioners’ children are eligible for scholarships and planned to apply. While in effect, however, Rule 1 blocked petitioners from using scholarship funds for tuition at Stillwater. To overcome that obstacle, petitioners sued the Department of Revenue in Montana state court. Petitioners claimed that Rule 1 conflicted with the statute that created the scholarship program and could not be justified on the ground that it was compelled by the Montana Constitution’s no-aid provision. Petitioners further alleged that the Rule discriminated on the basis of their religious views and the religious nature of the school they had chosen for their children.

The trial court enjoined Rule 1, holding that it was based on a mistake of law. The court explained that the Rule was not required by the no-aid provision, because that provision prohibits only “appropriations” that aid religious schools, “not tax credits.” *Id.*, at 94.

The injunctive relief freed Big Sky to award scholarships to students regardless of whether they attended a religious or secular school. For the school year beginning in fall 2017, Big Sky received 59 applications and ultimately awarded 44 scholarships of \$500 each. The next year, Big Sky received 90 applications and awarded 54 scholarships of \$500 each. Several families, most with incomes of \$30,000 or less, used the scholarships to send their children to Stillwater Christian.

In December 2018, the Montana Supreme Court reversed the trial court. 393 Mont. 446, 435 P. 3d 603. The Court first addressed the scholarship program unmodified by Rule 1, holding that the program aided religious schools in

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violation of the no-aid provision of the Montana Constitution. In the Court's view, the no-aid provision "broadly and strictly prohibits aid to sectarian schools." *Id.*, at 459, 435 P. 3d, at 609. The scholarship program provided such aid by using tax credits to "subsidize tuition payments" at private schools that are "religiously affiliated" or "controlled in whole or in part by churches." *Id.*, at 464–467, 435 P. 3d, at 612–613. In that way, the scholarship program flouted the State Constitution's "guarantee to all Montanans that their government will not use state funds to aid religious schools." *Id.*, at 467, 435 P. 3d, at 614.

The Montana Supreme Court went on to hold that the violation of the no-aid provision required invalidating the entire scholarship program. The Court explained that the program provided "no mechanism" for preventing aid from flowing to religious schools, and therefore the scholarship program could not "under *any* circumstance" be construed as consistent with the no-aid provision. *Id.*, at 466–468, 435 P. 3d, at 613–614. As a result, the tax credit is no longer available to support scholarships at either religious or secular private schools.

The Montana Supreme Court acknowledged that "an overly-broad" application of the no-aid provision "could implicate free exercise concerns" and that "there may be a case" where "prohibiting the aid would violate the Free Exercise Clause." *Id.*, at 468, 435 P. 3d, at 614. But, the Court concluded, "this is not one of those cases." *Ibid.*

Finally, the Court agreed with petitioners that the Department had exceeded its authority in promulgating Rule 1. The Court explained that the statute creating the scholarship program had broadly defined qualifying schools to include all private schools, including religious ones, and the Department lacked authority to "transform" that definition with an administrative rule. *Id.*, at 468–469, 435 P. 3d, at 614–615.

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Several Justices wrote separately. All agreed that Rule 1 was invalid, but they expressed differing views on whether the scholarship program was consistent with the Montana and United States Constitutions. Justice Gustafson's concurrence argued that the program violated not only Montana's no-aid provision but also the Federal Establishment and Free Exercise Clauses. *Id.*, at 475–479, 435 P. 3d, at 619–621. Justice Sandefur echoed the majority's conclusion that applying the no-aid provision was consistent with the Free Exercise Clause, and he dismissed the “modern jurisprudence” of that Clause as “unnecessarily complicate[d]” due to “increasingly value-driven hairsplitting and overstretching.” *Id.*, at 482–484, 435 P. 3d, at 623–624.

Two Justices dissented. Justice Rice would have held that the scholarship program was permissible under the no-aid provision. He criticized the majority for invalidating the program “*sua sponte*,” contending that no party had challenged it under the State Constitution. *Id.*, at 495, 435 P. 3d, at 631. Justice Baker also would have upheld the program. In her view, the no-aid provision did not bar the use of scholarships at religious schools, and free exercise concerns could arise under the Federal Constitution if it did. *Id.*, at 493–494, 435 P. 3d, at 630.

We granted certiorari. 588 U. S. 920 (2019).

II

A

The Religion Clauses of the First Amendment provide that “Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof.” We have recognized a “‘play in the joints’ between what the Establishment Clause permits and the Free Exercise Clause compels.” *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449, 458 (2017) (quoting *Locke v. Davey*, 540 U. S. 712, 718 (2004)). Here, the parties do not dispute that

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the scholarship program is permissible under the Establishment Clause. Nor could they. We have repeatedly held that the Establishment Clause is not offended when religious observers and organizations benefit from neutral government programs. See, e.g., *Locke*, 540 U. S., at 719; *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819, 839 (1995). See also *Trinity Lutheran*, 582 U. S., at 458 (noting the parties’ agreement that the Establishment Clause was not violated by including churches in a playground resurfacing program). Any Establishment Clause objection to the scholarship program here is particularly unavailing because the government support makes its way to religious schools only as a result of Montanans independently choosing to spend their scholarships at such schools. See *Locke*, 540 U. S., at 719; *Zelman v. Simmons-Harris*, 536 U. S. 639, 649–653 (2002). The Montana Supreme Court, however, held as a matter of state law that even such indirect government support qualified as “aid” prohibited under the Montana Constitution.

The question for this Court is whether the Free Exercise Clause precluded the Montana Supreme Court from applying Montana’s no-aid provision to bar religious schools from the scholarship program. For purposes of answering that question, we accept the Montana Supreme Court’s interpretation of state law—including its determination that the scholarship program provided impermissible “aid” within the meaning of the Montana Constitution—and we assess whether excluding religious schools and affected families from that program was consistent with the Federal Constitution.²

²JUSTICE SOTOMAYOR argues that the Montana Supreme Court “expressly declined to reach any federal issue.” *Post*, at 543 (dissenting opinion). Not so. As noted, *supra*, at 472, the Montana Supreme Court recognized that certain applications of the no-aid provision could “violate the Free Exercise Clause.” 393 Mont. 446, 468, 435 P. 3d 603, 614 (2018). But the Court expressly concluded that “this is not one of those cases.” *Ibid.*

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The Free Exercise Clause, which applies to the States under the Fourteenth Amendment, “protects religious observers against unequal treatment” and against “laws that impose special disabilities on the basis of religious status.” *Trinity Lutheran*, 582 U.S., at 458, 461 (internal quotation marks and alterations omitted); see *Cantwell v. Connecticut*, 310 U.S. 296, 303 (1940). Those “basic principle[s]” have long guided this Court. *Trinity Lutheran*, 582 U.S., at 458–462. See, e.g., *Everson v. Board of Ed. of Ewing*, 330 U.S. 1, 16 (1947) (a State “cannot exclude individual Catholics, Lutherans, Mohammedans, Baptists, Jews, Methodists, Non-believers, Presbyterians, or the members of any other faith, *because of their faith, or lack of it*, from receiving the benefits of public welfare legislation”); *Lyng v. Northwest Indian Cemetery Protective Assn.*, 485 U.S. 439, 449 (1988) (the Free Exercise Clause protects against laws that “penalize religious activity by denying any person an equal share of the rights, benefits, and privileges enjoyed by other citizens”).

Most recently, *Trinity Lutheran* distilled these and other decisions to the same effect into the “unremarkable” conclusion that disqualifying otherwise eligible recipients from a public benefit “solely because of their religious character” imposes “a penalty on the free exercise of religion that triggers the most exacting scrutiny.” 582 U.S., at 462. In *Trinity Lutheran*, Missouri provided grants to help non-profit organizations pay for playground resurfacing, but a state policy disqualified any organization “owned or controlled by a church, sect, or other religious entity.” *Id.*, at 455. Because of that policy, an otherwise eligible church-owned preschool was denied a grant to resurface its playground. Missouri’s policy discriminated against the Church “simply because of what it is—a church,” and so the policy was subject to the “strictest scrutiny,” which it failed. *Id.*, at 464–466. We acknowledged that the State had not “criminalized” the way in which the Church worshipped or

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“told the Church that it cannot subscribe to a certain view of the Gospel.” *Id.*, at 463. But the State’s discriminatory policy was “odious to our Constitution all the same.” *Id.*, at 467.

Here too Montana’s no-aid provision bars religious schools from public benefits solely because of the religious character of the schools. The provision also bars parents who wish to send their children to a religious school from those same benefits, again solely because of the religious character of the school. This is apparent from the plain text. The provision bars aid to any school “controlled in whole or in part by any church, sect, or denomination.” Mont. Const., Art. X, §6(1). The provision’s title—“Aid prohibited to sectarian schools”—confirms that the provision singles out schools based on their religious character. *Ibid.* And the Montana Supreme Court explained that the provision forbids aid to any school that is “sectarian,” “religiously affiliated,” or “controlled in whole or in part by churches.” 393 Mont., at 464–467, 435 P. 3d, at 612–613. The provision plainly excludes schools from government aid solely because of religious status. See *Trinity Lutheran*, 582 U. S., at 462.

The Department counters that *Trinity Lutheran* does not govern here because the no-aid provision applies not because of the religious character of the recipients, but because of how the funds would be used—for “religious education.” Brief for Respondents 38. In *Trinity Lutheran*, a majority of the Court concluded that the Missouri policy violated the Free Exercise Clause because it discriminated on the basis of religious status. A plurality declined to address discrimination with respect to “religious uses of funding or other forms of discrimination.” 582 U. S., at 465, n. 3. The plurality saw no need to consider such concerns because Missouri had expressly discriminated “based on religious identity,” *ibid.*, which was enough to invalidate the state policy without addressing how government funds were used.

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This case also turns expressly on religious status and not religious use. The Montana Supreme Court applied the no-aid provision solely by reference to religious status. The Court repeatedly explained that the no-aid provision bars aid to “schools controlled in whole or in part by churches,” “sectarian schools,” and “religiously-affiliated schools.” 393 Mont., at 463–467, 435 P. 3d, at 611–613. Applying this provision to the scholarship program, the Montana Supreme Court noted that most of the private schools that would benefit from the program were “religiously affiliated” and “controlled by churches,” and the Court ultimately concluded that the scholarship program ran afoul of the Montana Constitution by aiding “schools controlled by churches.” *Id.*, at 466–467, 435 P. 3d, at 613–614. The Montana Constitution discriminates based on religious status just like the Missouri policy in *Trinity Lutheran*, which excluded organizations “owned or controlled by a church, sect, or other religious entity.” 582 U. S., at 455.

The Department points to some language in the decision below indicating that the no-aid provision has the goal or effect of ensuring that government aid does not end up being used for “sectarian education” or “religious education.” 393 Mont., at 460, 466–467, 435 P. 3d, at 609, 613–614. The Department also contrasts what it characterizes as the “completely non-religious” benefit of playground resurfacing in *Trinity Lutheran* with the unrestricted tuition aid at issue here. Tr. of Oral Arg. 31. General school aid, the Department stresses, could be used for religious ends by some recipients, particularly schools that believe faith should “*permeate*[]” everything they do. Brief for Respondents 39 (quoting *State ex rel. Chambers v. School Dist. No. 10*, 155 Mont. 422, 438, 472 P. 2d 1013, 1021 (1970)). See also *post*, at 526–527, 531–532 (BREYER, J., dissenting).

Regardless, those considerations were not the Montana Supreme Court’s basis for applying the no-aid provision to

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exclude religious schools; that hinged solely on religious status. Status-based discrimination remains status based even if one of its goals or effects is preventing religious organizations from putting aid to religious uses.

Undeterred by *Trinity Lutheran*, the Montana Supreme Court applied the no-aid provision to hold that religious schools could not benefit from the scholarship program. 393 Mont., at 464–468, 435 P. 3d, at 612–614. So applied, the provision “impose[s] special disabilities on the basis of religious status” and “condition[s] the availability of benefits upon a recipient’s willingness to surrender [its] religiously impelled status.” *Trinity Lutheran*, 582 U. S., at 461–462 (quoting *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520, 533 (1993), and *McDaniel v. Paty*, 435 U. S. 618, 626 (1978) (plurality opinion); alterations omitted). To be eligible for government aid under the Montana Constitution, a school must divorce itself from any religious control or affiliation. Placing such a condition on benefits or privileges “inevitably deters or discourages the exercise of First Amendment rights.” *Trinity Lutheran*, 582 U. S., at 463 (quoting *Sherbert v. Verner*, 374 U. S. 398, 405 (1963); alterations omitted). The Free Exercise Clause protects against even “indirect coercion,” and a State “punishe[s] the free exercise of religion” by disqualifying the religious from government aid as Montana did here. *Trinity Lutheran*, 582 U. S., at 462–463 (internal quotation marks omitted). Such status-based discrimination is subject to “the strictest scrutiny.” *Id.*, at 463.

None of this is meant to suggest that we agree with the Department, Brief for Respondents 36–40, that some lesser degree of scrutiny applies to discrimination against religious uses of government aid. See *Lukumi*, 508 U. S., at 546 (striking down law designed to ban religious practice involving alleged animal cruelty, explaining that a law “target[ing] religious conduct for distinctive treatment or advanc[ing] legitimate governmental interests only against conduct with a

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religious motivation will survive strict scrutiny only in rare cases”). Some Members of the Court, moreover, have questioned whether there is a meaningful distinction between discrimination based on use or conduct and that based on status. See *Trinity Lutheran*, 582 U. S., at 468–470 (GORSUCH, J., joined by THOMAS, J., concurring in part) (citing, e. g., *Lukumi*, 508 U. S. 520, and *Thomas v. Review Bd. of Ind. Employment Security Div.*, 450 U. S. 707 (1981)). We acknowledge the point but need not examine it here. It is enough in this case to conclude that strict scrutiny applies under *Trinity Lutheran* because Montana’s no-aid provision discriminates based on religious status.

B

Seeking to avoid *Trinity Lutheran*, the Department contends that this case is instead governed by *Locke v. Davey*, 540 U. S. 712. See also *post*, at 524 (BREYER, J., dissenting); *post*, at 546–547 (SOTOMAYOR, J., dissenting). *Locke* also involved a scholarship program. The State of Washington provided scholarships paid out of the State’s general fund to help students pursuing postsecondary education. The scholarships could be used at accredited religious and nonreligious schools alike, but Washington prohibited students from using the scholarships to pursue devotional theology degrees, which prepared students for a calling as clergy. This prohibition prevented Davey from using his scholarship to obtain a degree that would have enabled him to become a pastor. We held that Washington had not violated the Free Exercise Clause.

Locke differs from this case in two critical ways. First, *Locke* explained that Washington had “merely chosen not to fund a distinct category of instruction”: the “essentially religious endeavor” of training a minister “to lead a congregation.” 540 U. S., at 721. Thus, Davey “was denied a scholarship because of what he proposed to do—use the funds to prepare for the ministry.” *Trinity Lutheran*, 582 U. S., at 464.

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Apart from that narrow restriction, Washington's program allowed scholarships to be used at "pervasively religious schools" that incorporated religious instruction throughout their classes. *Locke*, 540 U.S., at 724–725. By contrast, Montana's Constitution does not zero in on any particular "essentially religious" course of instruction at a religious school. Rather, as we have explained, the no-aid provision bars all aid to a religious school "simply because of what it is," putting the school to a choice between being religious or receiving government benefits. *Trinity Lutheran*, 582 U.S., at 464. At the same time, the provision puts families to a choice between sending their children to a religious school or receiving such benefits.

Second, *Locke* invoked a "historic and substantial" state interest in not funding the training of clergy, 540 U.S., at 725, explaining that "opposition to . . . funding 'to support church leaders' lay at the historic core of the Religion Clauses," *Trinity Lutheran*, 582 U.S., at 465 (quoting *Locke*, 540 U.S., at 722). As evidence of that tradition, the Court in *Locke* emphasized that the propriety of state-supported clergy was a central subject of founding-era debates, and that most state constitutions from that era prohibited the expenditure of tax dollars to support the clergy. See *id.*, at 722–723.

But no comparable "historic and substantial" tradition supports Montana's decision to disqualify religious schools from government aid. In the founding era and the early 19th century, governments provided financial support to private schools, including denominational ones. "Far from prohibiting such support, the early state constitutions and statutes actively encouraged this policy." L. Jorgenson, *The State and the Non-Public School, 1825–1925*, p. 4 (1987); e.g., R. Gabel, *Public Funds for Church and Private Schools* 210, 217–218, 221, 241–243 (1937); C. Kaestle, *Pillars of the Republic: Common Schools and American Society, 1760–1860*, pp. 166–167 (1983). Local governments provided grants to private schools, including religious ones, for the education

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of the poor. M. McConnell et al., *Religion and the Constitution* 318–319 (4th ed. 2016). Even States with bans on government-supported clergy, such as New Jersey, Pennsylvania, and Georgia, provided various forms of aid to religious schools. See Kaestle, *supra*, at 166–167; Gabel, *supra*, at 215–218, 241–245, 372–374; cf. *Locke*, 540 U. S., at 723. Early federal aid (often land grants) went to religious schools. McConnell, *supra*, at 319. Congress provided support to denominational schools in the District of Columbia until 1848, *ibid.*, and Congress paid churches to run schools for American Indians through the end of the 19th century, see *Quick Bear v. Leupp*, 210 U. S. 50, 78 (1908); Gabel, *supra*, at 521–523. After the Civil War, Congress spent large sums on education for emancipated freedmen, often by supporting denominational schools in the South through the Freedmen’s Bureau. McConnell, *supra*, at 323.³

³JUSTICE BREYER sees “no meaningful difference” between concerns animating bans on support for clergy and bans on support for religious schools. *Post*, at 526–528. But evidently early American governments did. See *supra*, at 480 and this page. JUSTICE BREYER contests particular examples but acknowledges that some bans on clergy support did not bar certain “sponsorship” of religious schools. *Post*, at 528. And, central to the issue here, he certainly does not identify a consistent early tradition, of the sort invoked in *Locke*, *against* support for religious schools. Virginia’s opposition to establishing university theology professorships and chartering theological seminaries, see *post*, at 529, do not fit the bill. Buckley, *After Disestablishment: Thomas Jefferson’s Wall of Separation in Antebellum Virginia*, 61 J. So. Hist. 445, 452–453 (1995). JUSTICE BREYER also invokes Madison’s objections to the Virginia Assessment Bill, *post*, at 527, but Madison objected in part because the Bill provided special support to certain churches and clergy, thereby “violat[ing] equality by subjecting some to peculiar burdens.” Memorial and Remonstrance Against Religious Assessments, Art. 4, reprinted in *Everson v. Board of Ed. of Ewing*, 330 U. S. 1, 66 (1947) (appendix to dissenting opinion of Rutledge, J.); see V. Muñoz, *God and the Founders: Madison, Washington, and Jefferson* 21–22, 27 (2009). It is far from clear that the same objections extend to programs that provide equal support to all private primary and secondary schools. If anything, excluding religious schools from such programs would appear to impose the “peculiar burdens” feared by Madison.